

Akhalak Ahmad v. Dakshinanchal Vidyut Vitaran Nigam Ltd. Thru' G.M. & Others

Allahabad High Court · Single Judge · 22 January 2020 · Writ - C No. 3425 of 2006 · **Writ disposed of; appellate order quashed; survey to be supplied; objections and police final report to be considered in the spirit of Clause 8.2(X)(h); provisional assessment to abide that decision**

HEADNOTE

Where a consumer challenges a theft-related provisional assessment (31.12.2003) and an appellate order that dismissed his appeal solely on an unserved 16.12.2003 checking/survey report, and the U.P. Electricity Supply Code, 2005 was not yet in force at the date of checking, the writ court decides the matter on the narrow question of natural justice. Because the 2005 Code was not in vogue and it makes a specific provision for supply of the survey, the licensee is directed to furnish a copy of the survey report; the consumer has three weeks thereafter to object to the provisional assessment and may place the police final report filed in the theft FIR; the assessing officer must then pass an order in the spirit of Clause 8.2(X)(h) after considering those objections. The appellate order (15.2.2005, served by letter dated 22.6.2005) is quashed; the provisional assessment remains subject to that fresh decision. The Court did not decide whether a section 127 appeal against a provisional assessment was maintainable, whether theft was established, or whether a police final report mandatorily requires withdrawal of the assessment.

FACTUAL SUMMARY

Akhalak Ahmad petitioned the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. He challenged a provisional assessment notice dated 31.12.2003 and an Appellate Committee decision (described as dated 22.6.2005, and later as an order dated 15.2.2005 served by letter dated 22.6.2005). The demand followed a checking of his premises on 16.12.2003. He said a copy of the checking or survey report was never served; he nonetheless appealed, and the Committee dismissed the appeal solely on that report. He argued that section 126 of the Electricity Act, 2003 required service of the provisional assessment and an opportunity of reply before a final assessment, that a section 127 appeal lay only against a final assessment (his appeal having been filed on wrong legal advice), and that between the Act coming into force on 10.6.2003 and the 2005 Supply Code there were no applicable theft-assessment rules. In the rejoinder he stated on oath that a police final report had been filed in the FIR alleging unauthorised theft of electricity, and he invoked Clause 8.2(X)(h) of the 2005 Code.

REUSABLE CONSTRUCTIONS

1. Natural justice requires supply of the checking or survey report before a consumer can be held to a provisional theft assessment; an appellate order that rests solely on an unserved report cannot stand. ¶ 7-9
2. That requirement applies even where the 2005 Code was not in force at the date of checking; the licensee must furnish the survey and hear objections before a fresh decision. ¶ 7-9
3. The assessing officer must consider objections and a police final report in the theft FIR in the spirit of Clause 8.2(X)(h); that is consideration on remand, not a merits withdrawal of the assessment. ¶ 5-8

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

Non-supply of the 16.12.2003 survey vitiates proceeding on the provisional assessment; the report must be supplied and objections heard

QUESTION

Where the 2005 Code was not in force at the date of checking, does natural justice require supply of the survey report before the consumer is held to a provisional theft assessment?

HOLDING

Yes, on the narrow compass of natural justice. The checking was on 16.12.2003; the 2005 Code was not then in vogue. The petitioner's case was that the checking/survey report was never served, yet the Appellate Committee dismissed his

appeal solely on that report. The Court directed the licensee to supply a copy of the survey report; the petitioner has three weeks thereafter to object to the provisional assessment. The appellate order (15.2.2005, served 22.6.2005) is quashed. The provisional assessment remains subject to the fresh decision. ¶ 7-9

QUALIFIER

The Court applied natural justice rather than a numbered sub-section of s.126. Petitioner had also argued s.126's two-stage process (provisional, reply, then final) and that a s.127 appeal against a provisional assessment was not maintainable.

FLAG Source PDF concatenates a 6.9.2014 listing order (Sunita Agarwal, J.) with this 22.1.2020 disposal. The challenge is first described as Appellate Committee dated 22.6.2005 and later as Appellate Order dated 15.2.2005 served through letter dated 22.6.2005; recorded as the judgment states it.

HOLDING-UNIT · UP-2005::8.2

Assessing officer must pass a fresh order in the spirit of Clause 8.2(X)(h) after considering objections and the police final report

QUESTION

Must the assessing officer consider a police final report in the theft FIR, in the spirit of Clause 8.2(X)(h), when deciding objections to a pre-Code 2005 provisional assessment?

HOLDING

Yes, as a direction, not a merits withdrawal. The petitioner is at liberty to file the police final report said to have been filed in the FIR alleging unauthorised theft. The Assessment Authority is directed to pass an order in view of the spirit of Clause 8.2(X)(h) after considering the petitioner's objections. The Court did not itself withdraw the assessment or restore the connection. ¶ 5-8

QUALIFIER

Clause 8.2(X)(h) speaks of a court finding that theft is not established. The material here is a police final report, not an acquittal. The Court required consideration 'in spirit of' the clause.

FLAG Cited as 'Rule 8.2 (X) (h)'; treated as Clause 8.2(X)(h). The 2005 Code was not in force on 16.12.2003; applied in spirit to the remanded decision.

PRINCIPLE TAGS

opportunity-before-final-assessment Where the 2005 Code was not yet in force at the date of checking, natural justice still required supply of the survey/checking report so the consumer could object to the provisional assessment. An appellate order that dismissed the appeal solely on the unserved report is quashed; the provisional assessment is left to a fresh decision after objections. Same cluster as SCJ-014, SCJ-022, SCJ-028, SCJ-117, SCJ-280. ¶ 7-9

clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment The assessing officer was directed to pass a fresh order in the spirit of Clause 8.2(X)(h) after considering objections and a police final report in the theft FIR. That is consideration in spirit, not a holding that a closure report mandatorily withdraws the assessment as a court acquittal would. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A SECTION 127 APPEAL AGAINST A PROVISIONAL ASSESSMENT WAS MAINTAINABLE

Petitioner said the appeal was filed on wrong advice and was not maintainable. The Court quashed the appellate order on natural-justice grounds without deciding maintainability. ¶ 4

NOT DECIDED — WHETHER THEFT WAS ESTABLISHED AND THE QUANTUM OF THE PROVISIONAL ASSESSMENT

Left to the assessing officer after objections and consideration of the police final report. ¶ 8-9

NOT DECIDED — WHETHER A POLICE FINAL REPORT (AS DISTINCT FROM A COURT ACQUITTAL) MANDATORILY REQUIRES WITHDRAWAL OF THE THEFT ASSESSMENT UNDER CLAUSE 8.2(X)(H)

The Court directed an order 'in view of spirit of' the clause; it did not itself withdraw the charges or restore the connection. ¶ 6-8

NOT DECIDED — WHETHER THE ABSENCE OF THEFT-ASSESSMENT RULES BETWEEN 10.6.2003 AND THE 2005 CODE (REPEAL SAVING ONLY RULES UNDER SECTIONS 67 AND 69) INDEPENDENTLY VITIATED THE ASSESSMENT

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.